10-13-23: SHORT TERM RENTAL (STR):

A. Purpose:

1. Create a process for the application and licensing of a residential dwelling for transient use as a short term rental. Address the granting, enforcement, and revocation of a Short Term Rental License.

2. Establish that the short term rental of a dwelling is a transient use only permitted by a valid county license. It is not a dwelling type, zone or entitlement. Also establish that a license only will be granted where the utility infrastructure, size limitations, setbacks, parking requirements, and all other licensing requirements are strictly complied with, and all county, state and federal laws.

3. Establish regulations to safeguard the public health, safety and welfare by providing for the licensing and maintenance of a short term rental in the unincorporated areas of Washington County.

4. Ensure that transient use of a dwelling for short term rental is operated in a manner that is safe for transient users, compatible with the community, and complies with the code and policies.

5. Ensure that a Short Term Rental License is only granted when it is compatible with the surrounding neighborhood and protects the overall character of the community, mitigating the effects of a short term rental on neighborhoods from increased noise, traffic, parking, trash, waste, and water use.

B. Applicability: This section applies to the transient use of a dwelling for short term rental in the unincorporated areas of Washington County as defined herein, where a valid license is maintained. This section applies to all existing nonconforming short term rentals except ~~as to~~ the owner occupancy requirement in C.2, and the size limitation in E.3. It does not apply to long term rentals. It does not apply to hotels, condotels, motels, timeshares, fractional ownership units, or other similar facilities with central check-in locations.

C. General Provisions:

1. Only one STR. Only one dwelling on a lot or parcel may obtain a license as a short term rental, and only where the single family dwelling and accessory dwelling legally exist. The STR shall not have lockouts or other features that increase the number of units being short term rented in any manner. The entire dwelling or entire ADU may constitute a STR, but only for the approved square footage in the licensed ~~dwelling~~ and at the situs for the STR as set forth in the license. No other ADU or portion of an ADU, and no other dwelling or portion of a dwelling, may be advertised or rented as a STR. Room shares, home shares, hostel-rooms, or amenity rentals (shared kitchen, bathroom, amenities or other common facilities) are prohibited. All provisions in this code shall be met, including the size limitations and setbacks for the dwelling as applicable in the zone.

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2. Owner-occupancy required. A Short Term Rental License shall not be issued for a dwelling on a lot or parcel unless the single family dwelling, or the accessory dwelling, is owner-occupied. For the purposes of this section, an "owner-occupant" shall have a primary residential exemption on the lot or parcel as determined by the Washington County Assessor's office, and shall be a permanent, full time resident at the same address. ~~reside on the lot or parcel for a minimum of one hundred eighty-three (183) consecutive calendar days during the calendar year.~~ A Short Term Rental License ~~is deemed revoked~~ automatically expires if the primary residential exemption is denied, lost, removed or revoked for any reason. ~~owner-occupant temporarily leaves the lot or parcel for a period that exceeds one hundred eighty-two consecutive calendar days.~~

3. Short Term Rental License Density Limit. Each subdivision, or phase of a subdivision, is limited to the number of STR licenses that do not exceed 10% based on the number of lots in the subdivision or phase thereof. No additional STR licenses shall be granted for a fractional number of lots (i.e. a subdivision or phase with 15 lots may only obtain up to one STR license). STR licenses shall be disbursed throughout the subdivision based on its phases, and limited in number based on the number of lots in each phase and the total number of lots in the subdivision (i.e. a subdivision phase with 28 lots may obtain up to two STR licenses; a subdivision with a total of 98 lots may obtain up to nine STR licenses if appropriately disbursed by phase). The license density limit does not apply to subdivisions with nine lots or less. If an approved overlay zone has more restrictive STR density limit provisions, the more restrictive controls over the less restrictive. The Community Development Department shall develop and implement policies regarding a waiting list for Short Term Rental Licenses by subdivision.

~~3~~4. Access and Occupancy Limit. All short term rentals shall have an access and occupancy limit of four people per bedroom based on the number of bedrooms listed on the septic permit or on the approved plans, whichever number is less (the "approved bedrooms"). Only legal bedrooms may be advertised, rented or used as sleeping quarters. Sleeping accommodations shall not be provided, advertised, rented or used in rooms other than approved bedrooms. No STR may be advertised, ~~or~~ rented ~~f~~or used by more people than the maximum access and occupancy limit. Access to the property shall be limited to confirmed guests. It is the owner or property manager's duty to monitor its STR to prevent violation of the access and occupancy limits with monitors, ~~motion,~~ cameras, or guest screening apps. Data from STR monitors, cameras, or guest screening apps shall be stored by the owner or property manager for 90 days, and shall be provided to the County no later than five business days after a ~~promptly upon~~ request, in an easily accessible format, or it is a violation. Other health and safety occupancy limits may apply to a specific property or dwelling based on the building code, fire code, septic permit, or other restrictions. The occupancy limit is effective 60 days after enactment of these regulations.

~~3~~5. Advertising. All advertising in the control of owner, owner occupant, or local property manager for short term rental of a dwelling shall include the Washington County Short Term Rental License number and relevant limitations (i.e. dwelling size, parking, occupancy limit, and state "no events, parties or excessive noise are allowed").

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~~4~~6. Taxes collected and remitted. All taxes, including transient room tax, shall be collected at the time of rental and remitted to Washington County via the State of Utah. Non-compliance may result in suspension, revocation, non-renewal, or denial of a Short Term Rental License, in the discretion of the county.

D. Application Required: At least ~~thirty (~~30~~)~~ days prior to advertising a dwelling for short term rental, the owner shall file a written application with the Community Development Department on its approved form seeking a Short Term Rental License. The application shall not be deemed complete until all required information is submitted.

1. Application materials:

a. The exact address, and proof of ownership of the subject lot or parcel. Any proposed license shall be issued in the name of the owner. If the owner is an entity, the name, address, email and phone number of all of the principals and the registered agent for the purposes of violations, notices, or acceptance of service.

b. The exact dwelling on the lot or parcel that is the subject of the application for a Short Term Rental License, with pictures of the exterior of the dwelling.

c. Proof of one ~~(1)~~ graveled or paved parking stall per approved bedroom, and pictures of the required parking stalls.

d. The site plan showing, setbacks, dwelling size limitations, number of approved bedrooms ~~approved in the septic permit~~, required parking stalls, pull through lane for large vehicles or trailers, and trash disposal details in compliance with section 10-13-23.

e. Payment of the application fee.

f. Proof that the applicant has the primary residential exemption on the lot or parcel as determined by the Washington County assessor's office, and is a permanent, full time resident at the same address ~~an owner-occupant~~ satisfactory to county, unless existing nonconforming.

g. If a local property manager is proposed, the contact information showing availability ~~twenty-four (~~24~~)~~ hours a day, seven ~~(7)~~ days a week and 365 days a year. The local property manager shall be able to be on site at the license address within two hours of a guest, county, or emergency services call. If the local property manager is an entity, the name, address, email and phone number of all of the principals and the registered agent for the purposes of violations, notices, or acceptance of service.

h. A Compliance Affidavit signed by all owners and ~~the~~ owner-occupants under penalty of law, certifying that the applicant, the dwelling, and the lot or parcel comply with the licensing requirements of section 10-13-23, including, but not limited to:

(1) The dwelling for transient use as a short term rental is in habitable condition and complies with the health and safety standards set forth in the health, building and fire codes adopted ~~by~~ in Washington County. Additionally, the dwelling and its appurtenances are capable of resisting all forces and loads to which they are normally subjected, and they shall be kept in sound condition and good repair.

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(2) The dwelling for transient use as a short term rental is insured for multiple rentals throughout the year, for its commercial purpose, and for the protection of the renters, guests, ~~tenants~~ or occupants from personal injury or property loss.

(3) ~~The~~ All owners and owner-occupants, local property managers, and all renters and ~~the~~ guests shall ~~will~~ comply with the responsible use and Good Neighbor Policy adopted by the Community Development Department which shall enumerate some of the requirements in this section. Each failure to do so is a violation under the enforcement provisions below if established by substantial evidence.

(4) The pictures of the required notices posted on the exterior and interior of the dwelling for transient use as a short term rental, and the pictures of the exterior of the dwelling that is the subject of the licensing application, are accurate.

i. Proof that smoke detectors, carbon monoxide detectors and fire extinguishers are installed and operable per adopted IRC (International Residential Code). Yearly assurance of compliance at time of licensing renewal.

j. If the short term rental is serviced by a fire special service district that requires it, proof of a yearly fire safety inspection and compliance with its requirements for STRs with occupancy of more than 10 guests.

~~j~~k. If the short term rental unit is connected to an on-site or community wastewater system for sewer service, or a septic tank, proof of system servicing or pumping by a licensed service provider every three ~~(3)~~ years, or more frequently as determined by a licensed service provider. Upon initial application, a pumping report will be accepted within two ~~(2)~~ years of the date of the report.

~~k~~l. If the short term rental unit is serviced by an on-site or community well or culinary water provider, proof of sufficient water rights for culinary, sewer and fire protection for all uses on the lot or parcel.

2. Application and licensing process:

a. Processing. A complete application shall be processed by the Community Development Department in accordance with applicable criteria set forth in county, state and federal laws.

b. Issuance or Denial Decision. The Community Development Department shall determine if the application is complete and all the criteria are met, and make a decision based on substantial evidence whether to issue ~~, condition, renew, revoke,~~ or deny a Short Term Rental License. The licensing decision of the Community Development Department is ~~an~~ a final administrative decision.

c. Renewal or Revocation Decision. The Community Development Department shall determine if all the criteria for renewal are met, and make a decision based on substantial evidence whether to renew or revoke a Short Term Rental License. The decision of the Community Development Department is a final administrative decision.

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d. License Expiration. If the owner, owner occupant, or local property manager does not seek renewal timely, or if the license is not in the name of the current property owner within the requisite ~~thirty (~~30 days~~)~~, or if the primary residential exemption is denied, lost, removed or revoked for any reason, the Short Term Rental License is deemed expired. Expiration of a license is based on action or inaction of the owner, owner occupant, or local property manager, not the county, and expiration of a license is not appealable as a final administrative decision of the county.

3. License validity and renewal:

a. A Short Term Rental License shall be renewed annually, or when the property is transferred to a new owner, whichever occurs first. Each change in ownership of the property where a license exists requires a new license within ~~thirty (~~30~~)~~ days of the transfer. No existing license may be assigned or transferred to another person, entity or property.

b. At the time of each renewal, the owner shall verify that the STR remains in compliance with the requirements needed to operate (i.e. habitability, posted notices, operable fire and carbon monoxide detectors, proof of sewer servicing, insurance, etc.). Owner also shall provide proof of the yearly fire safety inspection from the applicable fire special service district if required. All license information shall be updated by the owner at least annually at the time of renewal. Renewal determinations will be based on substantial evidence ~~is discretionary~~ by the county and renewal may be approved, approved with conditions, or denied based on any of the following factors: failure to comply with any term, condition or requirement in this section; unpaid fees, fines or penalties; unremitted taxes; incomplete or failed inspections; substantiated complaints received by the county including the Community Development Department, the Sheriff's office, or the County Attorney's office constituting~~;~~ three violations under the enforcement provisions of this section; or any zoning or building code violation, or any septic failure ~~notice~~, if not corrected and cleared within 60 days of the initial code violation or septic failure notice.~~:~~ ~~or any other impact causing the STR to become incompatible with surrounding uses.~~

~~c. If a Short Term Rental License is not renewed, or is not in the name of the current property owner within the requisite thirty (30 days), it is deemed expired.~~

4. Appeal process only for final administrative decisions:

a. Appeal of an issuance or denial decision. If the Community Development Department denies a~~n~~ complete application for a Short Term Rental License, the applicant may appeal the final administrative decision to a hearing officer in accordance with Title 10 chapter 2, above.

b. Appeal of a ~~non-~~renewal or revocation decision. If the Community Development Department does not renew or revokes a Short Term Rental License, the applicant may appeal the final administrative decision in accordance with Title 10 chapter 2, above.

E. Short Term Rental License:

1. No dwelling shall be offered, advertised, operated or rented as a STR without a valid Washington County Short Term Rental License.

2. All STR's are required to register with the State of Utah as a business and pay all applicable taxes, including transient room tax.

3. STR use of a dwelling is permitted in the following zones if in strict compliance with the applicable STR dwelling size limits, unless the size is existing nonconforming:

a. OST-20 (Open Space Transition ~~twenty (~~20~~)~~ acre minimum lot size) zone if the STR dwelling is ~~thirty-five hundred (~~3,500~~)~~ sq. ft. or less.

b. Agricultural Zones (A-5, A-10, A-20 and A-40) if the STR dwelling is ~~thirty-five hundred (~~3,500~~)~~ sq. ft. or less.

c. FR-13.5 and FR-0.5 (Forest Residential ~~thirteen thousand five hundred (~~13,500~~)~~ sq. ft. and one-half ~~(1/2)~~ acre minimum lot size) zones if STR dwelling is ~~fifteen hundred (~~1,500~~)~~ sq. ft. or less.

d. FR-1 (Forest Residential one ~~(1)~~ acre minimum lot size) zone if the STR dwelling is ~~twenty five hundred (~~2,500~~)~~ sq. ft. or less.

e. FR-5 and FR-10 (Forest Residential five ~~(5)~~ and ~~ten (~~10~~)~~ acre minimum lot size) zones if the STR dwelling is ~~thirty five hundred (~~3,500~~)~~ sq. ft. or less.

f. RA-1 and RA-2.5 (Residential Agricultural one ~~(1)~~ and two and one-half ~~(2.5)~~ acre minimum lot size) zones if the STR dwelling is ~~twenty five hundred (~~2,500~~)~~ sq. ft. or less.

g. RA-5 and RA-10 (Residential Agricultural five ~~(5)~~ and ~~ten (~~10~~)~~ acre minimum lot size) zones if the STR dwelling is ~~thirty five hundred (~~3,500~~)~~ sq. ft. or less.

h. RE-20 (Residential Estate ~~twenty thousand (~~20,000~~)~~ sq. ft. minimum lot size) zone if the STR dwelling is ~~fifteen hundred (~~1,500~~)~~ sq. ft. or less.

i. RE-40 and RE-2.5 (Residential Estate ~~forty thousand (~~40,000~~)~~ sq. ft. and two and one-half ~~(2.5)~~ acre minimum lot size) zones if the STR dwelling is ~~twenty-five hundred (~~2,500~~)~~ sq. ft. or less.

j. RE-5 (Residential Estate five ~~(5)~~ acre minimum lot size) zone if the STR dwelling is ~~thirty-five hundred (~~3,500~~)~~ sq. ft. or less.

k. PD-STR (Planned Development Short Term Rental) zone. Units used for the purpose of STR must be approved as part of the PD-STR zone change and project approval process. PD-STR units do not have an owner occupancy requirement, but must meet the size and other requirements approved in the project plan.

4. In addition to an owner or owner-occupant, a STR may have a local property manager who is available ~~twenty-four (~~24~~)~~ hours a day, seven ~~(7)~~ days a week and ~~three hundred sixty-five (~~365~~)~~ days a year. If there is a local property manager they must be able to be physically present at the STR to respond to emergencies and complaints within two ~~(2)~~ hours of being contacted. The owner, owner-occupant, or local property manager also

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shall respond to county within ~~two hours~~ one hour of being contacted by phone, and within ~~24~~ 48 hours if contacted by email. The current contact information of the owner or owner-occupant, and local property manager~~if one exists~~, ~~must~~ shall be provided to the county and permanently displayed in large, bold print on the exterior of the dwelling unit next to the front door on a visible weatherproof plaque.

5. All STR's shall have a clearly visible and legible notice posted in the dwelling unit on or near the front door, and in the kitchen, containing the following information:

a. The name, address, email and phone number of the owner or owner-occupant of the STR, and the name, address, email and phone number of the local property manager, if there is one, and a statement identifying the person ~~who is~~designated as available ~~twenty-four (~~24~~)~~ hours a day, seven ~~(7)~~ days a week and ~~three hundred sixty-five (~~365~~)~~ days a year~~, if there is a local property manager~~.

b. The E-911 address of the property.

c. The maximum number of all vehicles allowed for the STR and that all guest parking must be on the property in clearly designated, graveled or paved parking areas and not on any private or public street right-of-ways or on any landscape areas on the property.

d. The occupancy limit for the STR ~~of~~ is four people per approved bedroom.~~based on the number of bedrooms listed on the septic permit~~. Other health and safety occupancy limits may apply to a specific property or dwelling based on the building code, fire code, septic permit, or other restrictions.

~~d~~e. The trash pick-up day and notification that trash receptacles and refuse shall not be left on the street. There shall be a sufficient number of trash receptacles to accommodate all trash generated by those occupying the STR. Trash receptacles shall not be placed on the street for pick-up earlier than 5:00 p.m. the day before scheduled pickup by the trash service provider. Trash receptacles placed for street pick-up shall be removed from the curb or street by noon the day after scheduled pickup by the trash service provider. ~~not be left out for more than a 24 hour period.~~

~~e~~f. Notification that a renter or guest may be cited and fined for creating a disturbance or violating the Good Neighbor Policy or any provisions of local, state or federal law.

F. All STR owner, owner-occupants, or ~~and~~ local property managers are required to share the "Good Neighbor Policy" brochure adopted by the Community Development Department with all prospective renters or guests, and have it clearly displayed in the STR. The Good Neighbor Policy includes a list of general rules of conduct, best practices and standard of respect for the owner or owner-occupant, the local property manager, and their renters and guests. Failure to follow all policies, regulations, or laws is a violation under the enforcement provisions below.

G. Tents, recreational vehicles (RV's), campers or ~~and~~ similar units that were not designed for permanent residential use are prohibited as STRs. Overnight occupancy of recreational vehicles, camp trailers or ~~and~~ tents at the STR property is prohibited. Attaching any such unit to any power, water, or sewer source, or ~~is a violation under the~~

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~~enforcement provisions below.~~ opening slide-outs, pop-outs, bump-outs, or tip-outs on any such unit, also is prohibited.

H. A Short Term Rental License is valid only for the person, entity, dwelling, and square footage identified in the license.

I. Washington County is a high risk area for fire. Outdoor fire pits shall be permanently installed, and all renters or guests shall comply with local fire restrictions. All STR owner, owner-occupants, or ~~and~~ local property managers are required to clearly display accurate links to current fire restrictions in the STR.

J. The STR shall not have any outside appearance indicating a change of use from the surrounding residential uses. Exterior advertising signs are not permitted, but a wayfaring sign approved by the Community Development Department may be ~~is~~ permitted in county's sole discretion.

K. Parking. All parking for short term rental use shall be graveled or paved and entirely on the lot or parcel. There shall be a minimum of one ~~(1)~~ required parking stall per approved bedroom. No parking is permitted on the public or private street that provides access. If the STR will host guests with trailers or large vehicles, on-site parking and a pull-through is required, also on graveled or paved surfaces. Renters, guests or their invitees are not permitted to park vehicles or trailers on the adjacent public or private streets.

L. Trespass: Trespass by renters, guests or their invitees on private property in the vicinity of a STR is prohibited. It may result in ~~violation notices, civil penalties or~~ criminal citations against renters, guests or their invitees~~, owners, owner occupants or local property managers~~. Trespassing on private or public airports or runways is strictly prohibited.

~~L~~M. Events; Parties; Noise: A residential dwelling with a Short Term Rental License, and its lot or parcel, shall not be used by the STR renters, guests or invitees for events, parties, or excessive noise. It is the intent of this section to strictly limit the use to short term lodging, and not to host events, ~~or~~parties, or have excessive noise; such ~~event~~ use would change the nature of the residential setting and is not permitted. For STR use, prohibited events or parties also are defined as any gathering where the attendance numbers exceed 40 people, or exceed the occupancy limit for the STR as set forth above, whichever number is less. Prohibited events or parties also are defined as any ~~wedding, birthday party, pool party, reunion, shower, rehearsal dinner, reception,~~ disruptive gathering, or any "open invitation" gathering. The following indicia of an event or party is prohibited: food trucks, catering trucks, mobile game trucks, caterers, on-site party or event planners or coordinators, live music, disc jockey, portable PA systems, outdoor movie screen, fireworks, temporary lighting, rental or delivery of event or party supplies or equipment (i.e. chairs, tables, tents, laser tag, inflatables, climbing walls). ~~flood lights. Exterior lighting shall not exceed one foot candle at or beyond the property line at any time.~~ It is the owner or property manager's duty to monitor its STR with noise, motion, camera, or guest screening apps (i.e. Party Squasher; Noise Aware) to prevent events, parties, or excessive noise. Data from STR monitors, cameras or apps shall be stored by the owner or property manager for 90 days, and shall be provided to the County no later than five business days

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after a request, in an easily accessible format, or it is a violation. In addition to events, parties, or excessive noise herein, Special Events, as defined in County Ord. 3-3-1, *et. seq.*, also are prohibited at a STR. For STR use, excessive noise is defined as follows:

1. Quiet Time. Quiet time is defined as after 10:00 p.m. to before 7:00 a.m. Any noise emanating beyond the property line during quiet time for a continuous period of 10 minutes or more is prohibited if the average decibel level at or beyond the property line is 55 ~~50~~ dB or more.

2. Daytime. Daytime is defined as 7:00 a.m. to 10:00 p.m. Any noise emanating beyond the property line during daytime for a continuous period of 10 minutes or more is prohibited if the average decibel level at or beyond the property line is 75 dB or more. The emitted noise from landscape maintenance equipment or maintenance personnel is an exception during daytime if reasonable and necessary to maintain the grounds or the property.

N. Lighting: All exterior lighting shall be permanently installed. Exterior lighting shall be fully shielded, downward directed, and not exceed one foot candle at or beyond the property line at any time to prevent prohibited light trespass. Flickering, flashing, or scrolling lights are prohibited. Pole lights shall not exceed 12 feet in height. Exterior pole, court, pool, or flood lights shall be on timers and automatically shut off during quiet time. Motion sensor security lighting is permitted if it is less than 900 lumens, downward directed to prevent light trespass, and set to turn off no more than 10 minutes after the last detection of motion. It is the owner or property manager's duty to monitor its STR for light trespass and store the data for 90 days, and provide it to the County no later than five business days after a request, in an easily accessible format, or it is a violation.

O. Sound Systems; Speakers: All sound systems and exterior speakers shall be permanently installed and have volume limiters. No other sound systems or exterior speakers are permitted. The owner, owner occupant, or local property manager shall set the volume of the sound system and exterior speakers to automatically shut off during quiet time, and to stay at or below permitted decibel levels during daytime.

~~N~~P. Limitation of Liability: Washington County assumes no responsibility for the operation of the STR, and the owner or owner-occupant covenants and agrees to hold the county harmless for any injury or damage which may occur, of whatever type or nature, as the result of the operation of the STR. Owner or owner-occupant shall maintain appropriate liability insurance for the STR. Owner or owner-occupant further warrants and agrees to compensate the county for any expense incurred in the defense of any lawsuit or other type of action which may be brought against the county as a result of the owner's or owner-occupant's operation of this use. Nothing contained in this section allows a STR if otherwise prohibited by any applicable covenants. Covenants are privately enforced according to their terms.

Q. Illegal; Unlicensed STRs, Taxes:

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a. Offering, advertising, operating, or renting a dwelling or ADU, or portion thereof, as a STR without a valid Washington County Short Term Rental License is strictly prohibited and a violation.

b. Failure to collect and remit taxes, including transient room tax, at the time of a rental of a licensed, illegal or unlicensed STR unit is strictly prohibited and a violation.

c. Pursuant to Utah Code Ann. § 17-27a-803(3) the civil penalty for each such violation is $4,000 after notice and a 14-day reasonable opportunity to cure the violation. Substantial evidence of the violation, and failure to pay the fine within 20 days of the written violation notice, also will result in a Notice of Fine being filed with the county recorder against the property evidencing the violation and fine, and mailed to the record owner of the property. When the fine has been paid or resolved, the county will file a Notice of Satisfaction of Fine. Any property with a recorded Notice of Fine is not eligible to obtain a Washington County Short Term Rental License. Any violation under this subsection also may be prosecuted as a class B misdemeanor. Each additional violation is a separate class B misdemeanor.

~~MQ~~R. Enforcement~~, Revocation, Violation, Civil Penalty, Fine, Prosecution~~:

1. General enforcement.

a. This section shall be enforced by the Community Development Department, the Washington County Sheriff's office, and the County Attorney's office as deemed appropriate by the county.

b. Issuance, maintenance or retention of a Short Term Rental License is strictly contingent on ~~maintaining~~ compliance with all requirements in this section, and county, state and federal law.

c. All renter or guest complaints shall first be directed to the owner, owner-occupant ~~and~~ or local property manager~~, if one exists~~. The owner, owner-occupant or local property manager shall respond to the renter or guest complaint and attempt to resolve it within two ~~(2)~~ hours. The owner, owner occupant, or local property manager must be able to be physically present at the STR to respond to emergencies and complaints within two ~~(2)~~ hours of being contacted. Failure of the owner, owner-occupant or local property manager to respond within two ~~(2)~~ hours of notification by a renter or guest shall be considered a violation of this section.

d. All county complaints shall first be directed to the owner, owner-occupant ~~and~~ or local property manager~~, if one exists~~. The owner, owner-occupant or local property manager shall respond to the county complaint and attempt to resolve it within one hour.~~two (2) hours.~~ The owner, owner occupant, or local property manager must be able to be physically present at the STR to respond to emergencies and complaints within two ~~(2)~~ hours of being contacted. Failure of the owner, owner-occupant or local property manager to respond within two ~~(2)~~ hours of notification by the county shall be considered a violation of this section.

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e. All civil penalties or criminal citations related to violations enumerated herein can be enforced against the owner, owner-occupant, or local property manager.

~~e~~f. All ~~civil penalties and~~ criminal citations ~~penalties can be enforced against the owner, owner-occupant, local property manager, or the~~ issued to renters or guests shall not be used as violations against the owner, owner-occupant, or local property manager. However, in some cases, a criminal citation issued to a renter or guest may be substantial evidence of a violation by the owner, owner occupant, or local property manager (i.e. a guest cited for disorderly conduct may be evidence of an unpermitted event or party, or excessive noise).

2. Hybrid violations. Certain violations are defined as hybrid violations, and will not result in a violation notice unless the owner, owner occupant, or local property manager fails to pay the hybrid violation fine in a timely manner. The fine for each hybrid violation is set forth below~~$2,000~~. Substantial evidence of the violation, and failure to pay the hybrid violation fine within 20 days of the written hybrid violation notice, is an enforceable violation under (R)(3). addition to being a (R)(3) violation, failure to pay the hybrid violation fine also will result in a Notice of Fine being filed with the county recorder against the property evidencing the hybrid violation fine, and mailed to the record owner of the property. When the fine has been paid, the county will file a Notice of Satisfaction of Fine, but if the fine was not paid timely the (R)(3) violation remains. If any two hybrid violations occur within any 12-month period, the third hybrid violation is an enforceable violation under (R)(3). Hybrid violations are:

a. Trash receptacles placed for street pick-up too early, or not removed from the curb or street by noon the day after scheduled pickup by the trash service provider. The fine is $500 for each such hybrid violation;

b. Vehicles of renters, occupants, or their invitees parked on the public or private street adjacent to the STR property for~~m~~ more than two hours. Cleaning, landscape maintenance, or maintenance personnel may be parked on the street during daytime. The fine is $500 for each such hybrid violation;

~~c. The presence on the property of indicia of an event or party: food trucks, catering trucks, caterers, on-site party or event planners or coordinators, live music, disc jockey, outdoor movie screen, fireworks, temporary lighting, rental or delivery of event or party supplies or equipment (i.e. chairs, tables, tents);~~

~~d~~c. Excessive noise on the property as defined in 10-13-23(M) for a continuous period of 20 minutes or more based on the average dB level. The fine is $2,000 for each such hybrid violation;

3. Violations. Violations may be a regulation violation, a civil penalty, or a criminal citation. A violation notice may be issued by the Community Development Department based on substantial evidence for any action or inaction that violates the provisions of this section. Any owner, owner occupant, or local property manager, may receive a violation notice if the county finds they, or the property, violates any provision herein. Any accumulation of three regulation violations, civil penalties, or criminal citations, or any

combination of them, may result in STR business license denial, non-renewal, or revocation which is a final administrative decision of the Community Development Department.

~~2~~4. Three violations, two year revocation period. ~~Not renewed or revoked.~~ A Short Term Rental License may not be renewed, or may be revoked, by the Community Development Department for any violation of this section, or county, state or federal law if the owner, owner-occupant or local property manager ~~agent~~ has been notified by the department of a third violation,~~cited by the department for a second offense~~ or for any additional violation~~offense~~ thereafter. ~~If not renewed or revoked, a~~ The Short Term Rental License shall be revoked ~~not be issued~~ for the same dwelling, lot or parcel for a period of two years, and a Notice of Non-Renewal or Revocation shall be filed with the county recorder against ~~placed in~~ the property ~~records~~ evidencing the license non-renewal or revocation, and mailed to the owner of record ~~and duration~~. After the two year revocation period, the owner, owner occupant, or local property manager, may reapply for a Short Term Rental License, and may obtain a license if they meet all licensing criteria. After the two year revocation period, an existing nonconforming property may reapply for a Short Term Rental License, and may obtain a license if they meet all licensing criteria, except the property does not have to meet the owner occupancy requirement or the square footage requirement. If a new Short Term Rental License is issued, the county will vacate the Notice of Non-Renewal or Revocation.

5. Five year violation reset. If a property with a Short Term Rental License has not received three violations in a continuous five year period, violations are reset to zero, and a new five year time period begins. If a property has three or more violations in a continuous five year period, the violations do not reset to zero, and the property is subject to enforcement action.

~~4~~6. Renewal or revocation. A license also may not be renewed, or may be revoked, for:

a. Any action that endangers the public health, safety or welfare;

b. Failure to remit required taxes; or

c. Fraud, misrepresentation, or a false statement of material fact in the license application as determined by the county.

~~35. Violations. A violation notice may be issued by the Community Development Department for any action or inaction that violates the provisions of this section. The violation may be a regulation violation, a civil penalty, or a criminal citation. Any owner, owner-occupant, or local property manager, may receive a violation notice if the county finds they, or the propertyany renter or guest, violates any provision herein. Any accumulation of three regulation violations, civil penalties, or criminal citations, or any combination of them, may result in STR business license denial, non-renewal, or revocation which is a final administrative decision of the Community Development Department.~~

~~3~~7. Civil Penalty or Criminal Citation.~~Fines.~~ An owner, owner-occupant, or local property manager, or all~~both~~ (the "interested parties"), may be assessed a civil penalty or be given a criminal citation ~~fine~~ if found in violation of the provisions herein. For ~~T~~the first

violation of this section, the interested parties shall be given ~~after~~ written notice of the violation, the possible civil and criminal penalties, and reasonable opportunity to cure. If timely cured, it still counts as a first violation, but no further action will be taken by the county unless a second violation occurs. The county hereby adopts the following civil penalty ~~fine~~ schedule:

a. First violation~~offense~~: warning letter.

b. Second violation~~offense~~: ~~five hundred dollars ($500)~~ a day until compliance or license revocation.

c. Any additional violation~~offense~~ thereafter: ~~one thousand dollars ($1,000)~~ a day until compliance or license revocation.

d. Any criminal citation also is a violation, and successful prosecution may result in fines or fees separate from civil penalties.

~~4~~8. Prosecution. Any additional violation~~offense thereafter~~ (after the first violation warning letter, and the second violation~~offense~~) also may be prosecuted as a class B misdemeanor. Each additional violation~~offense~~ is a separate class B misdemeanor. (Ord. 2021-1196-O, 10-5-2021; amd. Ord. 2022-1205-O, 3-15-2022)

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